

IN RE: JEANNE McMAHAN) **DOCKET No. 2010-287**
License No. 068-0000520)

NOW COMES the State of Vermont, by and through its State Prosecuting Attorney Edward G. Adrian and Respondent Jeanne McMahan who hereby stipulate and agree as follows:

1. The Vermont Board of Allied Mental Health Practitioners (the “Board”) has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by Clinical Mental Health Counselors pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65 and; the rules of the Board and the Vermont Office of Professional Regulation.
2. Failure to conform to the essential standards of acceptable and prevailing practice is unprofessional conduct. 3 V.S.A. §129a(b)(2).
3. The Board may refer to the American Counseling Association (ACA) “Code of Ethics and Standards of Practice,” . . . As guidelines to the standards of practice for the professions subject to these rules. Although not in themselves additional grounds of unprofessional conduct, these ethical codes establish the standard of practice and fitness within the profession and are incorporated by reference into these rules. Administrative Rules for the Board of Allied Mental Health Practitioners. Rule 6.6.
4. Counselors are accurate, honest, and objective in reporting their professional activities and judgments to appropriate third parties, including courts, health insurance companies, those who are the recipients of evaluation reports, and others. ACA Code C(6)(b).

5. This Stipulation is neither an admission of liability by the Respondent, nor a concession by the State of Vermont that its charges are not well founded. To avoid delay, uncertainty, inconvenience, and expense of protracted litigation of the charges above the Parties reach a full and final agreement pursuant to this Stipulation and that the Board may impose the Consent Order set forth below. The Respondent does not admit to any of the alleged facts as outlined below, but does not contest that the State could prove some or all of them by a preponderance of the evidence if this matter went to a merits hearing
6. Jeanne McMahan (the "Respondent") of South Strafford, Vermont is a licensed clinical mental health counselor holding license number 068-0000520, issued by the State of

The Seal of the State of Vermont is located in the top right corner. It features a shield with a landscape scene: a large evergreen tree in the center, a cow in the foreground, and mountains in the background. Above the shield is a stag's head. A banner at the bottom of the shield reads "VERMONT".

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Vermont. This license was issued on or about November 16, 2000 and is set to expire on January 31, 2013.

7. At all relevant times the Respondent was employed by The Family Place (the "Facility") in Norwich, Vermont. The Respondent was at all times acting as a licensed clinical mental health counselor at the Facility. The Respondent wrongfully billed more than \$30,000.00 to CCVS for therapeutic services rendered to child victims that were also billed to and paid for by DCF. This wrongful billing was inaccurate, but not fraudulent.
8. By way of illustration on or about April 7, 2003 the Respondent filled out a form for CCVS entitled "Mental Health Treatment Plan" for Client #1. In it the Respondent was asked "[a]re you presently billing Medicaid for these services?" The Respondent answered "No" to this question. At the bottom of the same form, right above the Respondent's signature it stated "I also understand that the Victims Compensation Program is last payor, and acknowledge that I must bill the client's insurance first, unless otherwise agreed upon with the Victims Compensation Program."
9. On or about October, 2004 the Respondent listed Client # 1 on a billing invoice to DCF. On this invoice the Respondent was asked for the medicaid ID number of Client #1; the diagnostic code for Client #1; the New HCPCS Procedure Code for Client #1; and the billable units for Client #1. The Respondent signed off on this invoice.
10. The Respondent repeated the allegations above over a course of approximately six years (2004 - 2010) for twelve (12) other clients. Based on an independent review of the records the total amount billed to CCVS, above that which was billed to DCF was approximately \$31,967.63. On March 7, 2012, the Respondent and the facility resolved the dispute regarding these monies for a fraction of this amount.
11. The policy and protocol in respect to the billing practices as set forth in the billing forms, could be interpreted in more than one way. The Respondent claims long time Executive Director of the Facility had knowledge of this billing since the beginning of the Respondent's employment and the Respondent kept notes to that effect. The Executive Director could not remember discussing the billing at the onset of the Respondent's employment. The Executive Director also had access to all of the Respondent's billing as all records of Respondent's billing DCF and Victim's Compensation were kept at the Facility and subject to review by the Executive Director.
12. As a result of services provided by Respondent to crime victims, SRS/DCF paid grant money to The Family Place. As a result of same services provided by Respondent to crime victims, The Victims Compensation Fund paid the Respondent. Although there were two payments for each patient session, the Respondent directly received only one of the payments. The Family Place paid a fraction of the money it received from SRS/DCF to the Respondent as salary. However, given the amount of this salary it is the Respondent's position that she would not have begun employment at The Family Place but for her belief that she would be able to receive compensation from The Victims Compensation Fund

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13. By engaging in the above referenced behavior the Respondent committed unprofessional conduct because by failing to reveal to CCVS (when specifically asked) that she was also billing DCF she was not being accurate and objective in her reporting and billing to CCVS. By ignoring the explicit requirement that CCVS only be used as a payor of last resort, especially whereas in this matter the Respondent was also billing DCF, the Respondent failed to conform to the essential standards of acceptable and prevailing practice.

Violations

By committing the above act(s), circumstance(s) and/or omission(s), the Respondent has engaged in unprofessional conduct by violating the Vermont Statutes and Rules of the Board, as enumerated above in paragraphs 2-4.

Understandings

- a. Respondent understands that the Board must review and accept the terms of the Stipulation and Consent Order. If the Board rejects any portion of the same, it shall be void in its entirety.
- b. Respondent has reviewed the Stipulation and Consent Order, agrees that it sets out the entire agreement of the parties, and is freely and voluntarily entered into.
- c. Respondent waives any notification period and agrees to have this document reviewed by the Board during its next meeting. Respondent specifically waives any claim that presentation of this stipulation to the Board would prejudice her right to a fair and impartial hearing should the Board reject this stipulation.
- d. Respondent is not under the influence of any drugs or alcohol at the time she signs this Stipulation.
- e. Respondent voluntarily waives her right to appeal the decision and order of the Board entered under this stipulation.
- f. The Respondent has had the opportunity to consult with able and competent counsel in respect to this matter.
- g. The Respondent acknowledges that she understands that this document and its attachments are a public record and may be used for any legal purpose.

ORDER

- A. Based on the Stipulation above it is **ORDERED AND ADJUDGED** as follows: Respondent's license to practice as a clinical mental health counselor shall be **REPRIMANDED and SUSPENDED for a PERIOD OF THIRTY DAYS (30)**. The

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March 31, 2012 *W*
period of suspension shall commence on the date selected by the Respondent, that is no more than sixty (60) days from the date of entry below. The Respondent's license shall be reinstated without further action ~~thirty-one (31) days~~ after the suspension commences. *can April 30, 2012*

During the period of suspension, the Respondent may continue to work for her current employer the Clara Martin Center and perform tasks that do not require any licensure and are currently carried out by unlicensed staff

- B. Respondent shall bear the cost of compliance with the steps which Respondent has agreed to undertake pursuant to this Consent Order.
- C. If Respondent violates the terms of this Consent Order, the Board, after giving Respondent notice and an opportunity to be heard, may take further disciplinary action.
- D. This Stipulation and Consent Order shall remain part of Respondent's licensing file and may be used in any further disciplinary proceeding.
- E. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 3/15/12

by: *[Signature]*
Edward G. Adrian
State Prosecuting Attorney

JEANNE McMAHAN
RESPONDENT

Dated: 3/15/12

by: *[Signature]*
Jeanne McMahan

APPROVED AS TO FORM:

Dated: March 15, 2012

by: *[Signature]*
Michael F. Hanley
Attorney for the Respondent

APPROVED AND SO ORDERED:

VERMONT BOARD OF ALLIED MENTAL
HEALTH PRACTITIONERS

Dated: 3/15/12

by: *[Signature]*
Chairperson

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